

23STCV27489 23STCV27489

County: los-angeles

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Department: 11

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Case Number: 23STCV27489 Hearing Date: August 12, 2026 Dept: 11

Galvez (23STCV27489)

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Tentative

Ruling Re: Motion to for Class Certification

Date: 8/12/26

Time: 1:45 pm

Moving Party: Hector Galvez

("Plaintiff")

Opposing Party: April

Freight, Inc. ("April Freight" or "Defendant")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Plaintiff's motion for class
certification is granted in full.

BACKGROUND

This is a putative class action. Plaintiff Galvez used to work for Defendant April Freight. Galvez alleges that April Freight committed numerous wage-and-hour violations against him and other current and former non-exempt employees.

Here, Plaintiff moves to certify two classes and two subclasses:

- * Unpaid Wages Class;

- * Reimbursement Class;

- * Waiting Time Penalties Subclass;

and

- * Wage Statement Subclass.[1]

APPLICABLE LAW

The plaintiff is obligated to show that class certification is proper. (See *City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 460; see also *Caro v. Procter & Gamble Co.* (1993) 18 Cal.App.4th 644, 654.) He or she “must demonstrate the existence of an ascertainable and sufficiently numerous class, a well-defined community of interest, and substantial benefits from certification that render proceeding as a class superior to the alternatives.” (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021.)

Ascertainability
and Numerosity

A class is “ascertainable when it is defined ‘in terms of objective characteristics and common transactional facts’ that make ‘the ultimate identification of class members possible when that identification becomes necessary.’” (*Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 980.)

“The class must be

'numerous' in size. But there is no fixed minimum or maximum number . . . The numerosity analysis is limited to how many individuals fall within the class definition and whether their joinder is impracticable, not how many 'net' class members there might be after considering affirmative defenses." (Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group June 2023 Update) ¶ 14:21, emphasis in original.)

"A party seeking class certification bears the burden of satisfying the requirements of Code of Civil Procedure section 382, including numerosity, and the trial court is entitled to consider 'the totality of the evidence in making [the] determination' of whether a 'plaintiff has presented substantial evidence of the class action requisites.'" (Soderstedt v. CBIZ S. California, LLC (2011) 197 Cal.App.4th 133, 154.)

Commonality

"[T]he proponent of certification must show, inter alia, that questions of law or fact common to the class predominate over the questions affecting the individual members[.]" (Washington Mutual Bank, FA v. Superior Court (2001) 24 Cal.4th 906, 913.) This means "each member must not be required to individually litigate numerous and substantial questions to determine his [or her] right to recover following the class judgment[.]" (Weil & Brown, supra, at ¶ 14:11.6.) "[T]he issues which may be jointly tried, when compared with those requiring separate adjudication, must be sufficiently numerous and substantial to make the class action advantageous to the judicial process and to the litigants." (Ibid.)

Typicality and Adequacy

"The 'test of typicality is whether other members have the same or similar injury, whether the action is based on conduct which is not unique to the named plaintiffs, and whether other class members have been injured by the same course of conduct.'" (Id. at ¶ 14:29 [quoting Martinez v. Joe's Crab Shack Holdings (2014) 231 Cal.App.4th 362, 375].)

"That the purported class representative's claims must be 'typical' does not mean they

must be identical to the claims of other class members. It is sufficient that the representative is similarly situated so that he or she will have the motive to litigate on behalf of all class members.” (Id. at ¶ 14:29.2.) Consequently, “it is not necessary that the class representative have personally incurred all of the damages suffered by each of the other class members.” (Ibid., emphasis in original.)

Moreover, “[t]he class representative, through qualified counsel, must be capable of ‘vigorously and tenaciously’ protecting the interests of the class members.” (Id. at ¶ 14:36.)

“The prospective class representative must file a declaration stating that he or she desires to represent the class and understands the fiduciary obligations of serving[.]” (Ibid.)

Manageability
and Superiority

“The proponent of class certification must demonstrate that the proposed class action is manageable [citation].” (Id. at ¶ 14:11.10.) “This requires the trial court ‘to carefully weigh the respective benefits and burdens of a class action, and to permit its maintenance only where substantial benefits will be accrued by both litigants and the courts alike.’ [Citation.]” (Ibid., emphasis in original.)

“In certifying a class action, the court must also conclude that litigation of individual issues, including those arising from affirmative defenses, can be managed fairly and efficiently.” (Duran v. U.S. Bank National Assn. (2014) 59 Cal. 4th 1, 28-29.) “Trial courts must pay careful attention to manageability when deciding whether to certify a class action. In considering whether a class action is a superior device for resolving a controversy, the manageability of individual issues is just as important as the existence of common questions uniting the proposed class.” (Id. at 29.)

“A class action is not ‘superior’ where there are numerous and substantial questions

affecting each class member's right to recover, following determination of liability to the class as a whole.”

(Weil & Brown, *supra*, at ¶ 14:46, emphasis in original.)

DISCUSSION

Ascertainability
and Numerosity

Unpaid

Wages Class

– “All current and former California drivers of Defendant who, at any time between November 8, 2019 through the date of the order granting class certification, were not [] paid for all wages earned for their workday.” (Notice of Motion, p. 1.)

Reimbursement

Class –

“All current and former California drivers of Defendant who, at any time from November 8, 2019 through the date of the order granting class certification were not reimbursed for cell phone usage.”

(*Ibid.*)

Waiting

Time Penalties Subclass – “All members of the Unpaid Wages Class whose employment with Defendant ended at any time between November 8, 2020 through the date of the order granting class certification.” (*Ibid.*)

Wage

Statement Subclass – “All members of the Unpaid Wages Class who worked for Defendant in California from November 8, 2022 through the date of the order granting class certification.” (*Ibid.*)

Plaintiff

contends “April Freight’s records provide information that identifies each class member.” (Motion, p. 12.) He claims he “will be able to identify the members of the classes based on Defendant’s employment records.” (*Ibid.* [stating that “the identity of all class members has already been ascertained by Defendant in responding to written discovery requests in this action”].)

Plaintiff

also claims Defendant's records "establish the requisite numerosity, as April Freight has indicated that between November 8, 2019 and through April 2024, there were at least 45 current and/or former drivers." (Ibid.)

Defendant

does not challenge ascertainability and numerosity as to the Reimbursement Class, Waiting Time Penalties Subclass, and Wage Statement Subclass.

Defendant

argues that the Unpaid Wages Class is unascertainable to the extent the class "is based on the claim that Defendant is liable for deductions for meal periods that were not taken[.]" (Opposition, p. 13.)

The Court

disagrees. The definition does not mention meal periods. The viability of the meal-period claim, which is just one of three claims being alleged by the Unpaid Wages Class (see Opposition, p. 16), does not bear on the suitability of the definition.

The Court finds that all four definitions

utilize objective characteristics and common facts. They comply with the Noel standard.

The same goes for numerosity. Forty-five employees is well above what the numerosity element requires. (See Weil & Brown, *supra*, at ¶ 14:21.1 [instructing that "[n]o minimum number of plaintiffs is required as a matter of law for maintenance of a state court class action"]; see also *id.* at ¶ 14:21.3 [recognizing that a class of 10 is permissible]; *Hendershot v. Ready to Roll Transportation, Inc.* (2014) 228 Cal.App.4th 1213, 1222-1223 [reversing denial of a nine-member class].)

Plaintiff's burden is satisfied.

Commonality

Unpaid Wages Class

Plaintiff contends that

employees were obligated to work off the clock in three ways:

1. Defendant instructed

employees to conduct pre- and post-trip inspections off the clock (see Motion, p. 16);

2. Defendant

communicated with employees off the clock (see *ibid.*); and

3. Defendant

“auto-deduct[ed] 30 minutes for meal periods and requir[ed]” employees “to work through meal periods.” (*Ibid.*)

For the first claim,

regarding alleged off-the-clock inspections, Plaintiff cites his own declaration and the declarations of three putative members. The declarations state that Tiffany Yu – i.e., Defendant’s person most knowledgeable (“PMK”) – or possibly another corporate representative told them to perform the inspections off the clock. (See Galvez Decl., ¶¶ 13-17; see also Boteo Decl., ¶¶ 8-10; Bellinger Decl., ¶ 8; Sanchez Decl., ¶¶ 8-9.)

Defendant contends the

Court should find Plaintiff’s declarations incredible because the declarants only worked for Defendant for a short time.
(See Opposition, pp. 6-7.)

To counter Plaintiff’s

declarations, Defendant cites the PMK’s declaration and declarations from four employees. The PMK “denie[s] that Defendant had a policy of requiring drivers to conduct inspections and other duties off the clock before or after driving.” (*Id.* at p. 7; see also Yu Decl., ¶ 10.)

The employees state that they were never ordered to do inspections off the clock. (See Chavarria Decl., ¶ 6; see also Valdivia Decl., ¶ 4; Rangel Decl., ¶ 5; Liu Decl., ¶ 7.)

Plaintiff’s evidence is

sufficient. Galvez worked for Defendant for

most of the class period. (See Reply, p. 5.) Bellinger worked for Defendant for nearly three years. (See Bellinger Decl., ¶ 2.) They were employed long enough to offer declarations on personal knowledge. Moreover, certification can be warranted despite the existence of conflicting declarations. (See *Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319 [approving certification even though the defendant filed 51 employee declarations that contradicted the plaintiffs' declarations].) The Court finds that Plaintiff cites ample common evidence creating predominating common questions. (See, e.g., Reply, pp. 5-6 [citing evidence]; see also, e.g., Motion, p. 17 [listing common issues].)

For the second claim, alleged off-the-clock communications, Plaintiff maintains:

April Freight would communicate with drivers throughout the day via text. (Yu Depo., 31:2132:18.) Likewise, they would send text messages to drivers about their shifts after their shifts were over. However, Defendant did not compensate for this time. (Yu Depo, 80:2-81:1; Galvez Decl., ¶17; Ex. 3 to Galvez Decl; Boteo Decl., ¶ 11 ["After I had finished my shift for the day, I would receive text messages from April Freight regarding my route for the next day. However, I was never paid for this time."; Bellinger Decl., ¶ 10 ["I was required to use my personal cell phone for dispatch and communications with customers and was not compensated for the time communicating off-the-clock or phone usage.]; Bautista Decl., ¶ 10 ["April Freight would text or call me the day before or the day of work to tell me when to report and what my routes were . . . I was not paid for any time communicating with April Freight that was off-the-clock."].)

(Motion, pp. 10-11.)

The opposition brief does not address this claim. (See Opposition, pp. 6-13 [solely addressing the first and third claims].)

The Court finds that Plaintiff meets his burden. (See Motion, pp. 10-11, 16-17.)

The third claim alleges

that Defendant automatically deducted time during meal periods, but required employees to work through that time. Plaintiff states:

When Defendant began using QuickBooks Workforce, it utilized an auto-deduct practice that automatically deducted 30 minutes from a shift, regardless of whether a meal period was taken. (Yu Depo, 68:15-69:18; Galvez Decl., Ex. 4; Dos Santos Decl., Ex. 2.) Defendant does not have a meal period policy, let alone any written policies. (Yu Depo., 45:23-43:3.)

Defendant did not compensate employees for the period of time when they auto deducted for meal periods.

Plaintiff and Class Members were also unable to take meal periods due to the nature of the work and routes they have. (Galvez Decl., ¶¶ 18-20; Bellinger Decl., ¶ 9 ["In regards to meal breaks, [Tiffany Yu] sent a group text instructing drivers to document a 30-minute period, but I was unable to take lunch breaks because of the workload. I called [Ms. Yu] to complain that there was no lunch break and that this time should have been paid. [Ms. Yu] told me I could not get meals because I had to get loads, and that if loads were late, the company would be charged money. [Ms. Yu] told me that if I had a problem with this, I should find another job."]; Boteo Decl., ¶¶ 12-13 ["On one occasion, when I would stopped to use the restroom at a gas station, I was contacted by [Ms. Yu], who called me upset because the truck wasn't on the road.... This issue with breaks was the main issue I quit my job with April Freight."]; Bautista Decl., ¶ 14 ["I did not receive any breaks. Karen, whom I believe is the owner's daughter, told me on the day I was hired to get to the customer quickly and to eat when I returned to the yard."].)

(Id. at p. 9, footnote omitted.)

Defendant asserts, once again, that Plaintiff's declarations should be deemed incredible and that Defendant's declarations should be credited instead. (See Opposition, pp. 10-13.)

The Court agrees with Plaintiff. The PMK admitted that Defendant's QuickBooks program made automatic deductions for 30-minute meal periods. (See Dos Santos Decl., Ex. 1, pp. 68-69 [attaching the PMK's deposition transcript].) While she claimed Defendant would "remove th[e] deductions manually" when employees texted to say that they had not taken

their meal breaks (*id.* at Ex. 1, p. 69), the record lacks evidence evincing that Defendant communicated the purported removal policy to employees. This ambiguity calls into question whether employees knew that deductions could be removed. And, above all, there is a predominating common issue about whether Defendant improperly placed the onus on employees to correct the auto deductions. So, on balance, the Court finds Plaintiff's evidence credible and competent to meet his burden. (See Motion, pp. 9, 16-17; see also Reply, pp. 6-8.)[2]

Reimbursement Class

Plaintiff meets his burden. First, certification of this class is unopposed. (See Opposition, pp. 6-14 [merely contesting the Unpaid Wages Class and Waiting Time Penalties Subclass].) Second, Plaintiff's evidence suggests a common policy or practice of having employees use their personal cell phones "to send photos via text to Defendant or through an application on their phone[s]" without reimbursement. (Motion, p. 11; see also, e.g., Dos Santos Decl., Ex. 1, pp. 39-40, 54-55; Galvez Decl., ¶¶ 23-27.) The evidence raises multiple common questions, chiefly, whether Defendant violated California law by failing to reimburse "the reasonable expense[s] of the mandatory use of [] personal cell phone[s]." (*Cochran v. Schwan's Home Services, Inc.* (2014) 228 Cal.App.4th 1137, 1140; see also Motion, p. 18 [listing other common questions].)

Waiting

Time Penalties Subclass and Wage Statement Subclass

Plaintiff's burden is met. The subclasses are derivative. (See Motion, p. 19; see also Reply, pp. 10-11.) Since common issues predominate as to the classes, common issues also predominate as to the subclasses.

Misclassification

Claim

Plaintiff additionally advances an unopposed misclassification claim. (See Motion, pp. 7, 14-15; see also Reply, p. 10.) His burden is met.

Typicality and Adequacy

Plaintiff meets his burden. The evidence suffices to prove that Plaintiff is typical and adequate and that Plaintiff's counsel is adequate. (See Motion, pp. 16, 17, 19; see also Galvez Decl., ¶¶ 28-30; Dos Santos Decl., ¶¶ 7-17.)

Manageability and Superiority

Plaintiff meets his burden. Given the preceding analysis, especially concerning predominating common issues, the class method is manageable and superior.

Plaintiff's motion to certify the class is granted.

[1] April Freight's opposition brief was filed late. Plaintiff brought an ex parte application to strike the opposition brief. The Court will rule on the ex parte application during the August 12th hearing.

[2]

The class period for the third claim shall be April 2023 to November 8, 2023. (See Motion, p. 9 n.1.)